

26STCV21068 26STCV21068

County: los-angeles

Division: Civil Law and Motion

Department: 833

Hearing date: 2026-09-02

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C833%2C09%2F02%2F2026

Source SHA-256: 89f300165240519483e666d4ed207662bde6c1172bc61b9e5db05aadf8d2f3f7

Case Number: 26STCV21068 Hearing Date: September 2, 2026 Dept: 833

Rachel Oshiro Case No. 26STCV21068

Hearing:

September 2, 2026

v.

Location:

Stanley Mosk Courthouse

Department:

833

Katelyn

Frick, et. al. Judge:

Joseph Lipner

[Tentative] Order Granting

Application for Writ of Possession

INTRODUCTION

Plaintiff Rachel Oshiro ("Plaintiff") moves for writ of possession against Defendants Katelyn Frick, Camille Foster, and Daniel Guerra ("Defendants") over the following property: 1 live domestic cat name "Ricky Martin," a domestic orange shorthair cat, microchip #985113009534705, worth sentimental value and about \$50.

The Court GRANTS the application for writ of

possession and the turnover order.

LEGAL STANDARD

“Upon the filing of the complaint or at any time thereafter, the plaintiff may apply pursuant to this chapter for a writ of possession by filing a written application for the writ with the court in which the action is brought.” (Code Civ. Pro. § 512.010, subd. (a).)

Pursuant to Code of Civil Procedure section 512.010, subd. (b), the application must be submitted under oath and include:

- (1) A showing of the basis of the plaintiff's claim and that the plaintiff is entitled to possession of the property claimed. If the basis of the plaintiff's claim is a written instrument, a copy of the instrument shall be attached.
- (2) A showing that the property is wrongfully detained by the defendant, of the manner in which the defendant came into possession of the property, and, according to the best knowledge, information, and belief of the plaintiff, of the reason for the detention.
- (3) A particular description of the property and a statement of its value.
- (4) A statement, according to the best knowledge, information, and belief of the plaintiff, of the location of the property and, if the property, or some part of it, is within a private place which may have to be entered to take possession, a showing that there is probable cause to believe that such property is located there.
- (5) A statement that the property has not been taken for a tax, assessment, or fine, pursuant to a statute; or seized under an execution against the property of the plaintiff; or, if so seized, that it is by statute exempt from such seizure.

Before the hearing on the Writ of Possession, the Defendant must be served with (1) a copy of the summons and complaint; (2) a Notice of

Application and Hearing; and (3) a copy of the application and any affidavit in support thereof. (Code Civ. Pro. § 512.030.)

“The writ will be issued if the court finds that the plaintiff’s claim is probably valid and the other requirements for issuing the writ are established.” (Code Civ. Pro. § 512.040(b).) “A claim has ‘probable validity’ where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.” (Code Civ. Pro. § 511.090.)

PROCEDURAL BACKGROUND

On July 13, 2026, Plaintiff brought an ex parte application for writ of possession and other relief.

The Court (Murillo, J.) denied the application for writ of possession for the return of the cat but granted a temporary restraining order and OSC re preliminary injunction to preserve the status quo.

On

July 31, 2026, the Court (Lipner, J.) granted a preliminary injunction that required, among other things, that Defendants not harm or transfer the cat. The Court found that Plaintiff had established that she was the rightful owner of the cat. The Court noted, however, that given Judge Murillo’s earlier ruling, no application for writ of possession was before the Court at that time. The Court observed that Plaintiff continued to have the option of filing such a writ of possession.

On

August 10, 2026, Plaintiff filed an ex parte application for a writ of possession as well as an application for writ of possession on regular notice. The Court denied the ex parte application for the reasons explained in its August 10, 2026 minute order. However, the Court scheduled the hearing on the application for writ of possession for September 2, 2026. The Court also urged the parties to resolve this dispute amicably.

On

August 19, 2026, each of the Defendants filed separate oppositions to the application for writs of possession.

On

August 24, 2026, Plaintiff filed her reply.

DISCUSSION

A.

Notice

Plaintiff did not

file a formal proof of service of her moving papers. However, she sent a group chat giving notice of the refiling of the writ of possession on August 7, 2026. (8/10/2026 Oshiro Decl., ¶ 21, hereinafter “Oshiro Decl.”.) Two of the three Defendants were at the August 10, 2026 ex parte hearing where the hearing date was set in open court. All three Defendants have timely filed oppositions to the application for writ of possession. No party has objected that service was improper. Accordingly, the Court concludes that service was adequate under these facts.

B.

Probable Validity of Plaintiff’s Claim

Plaintiff seeks writs of possession based on its cause of action for conversion and claim and delivery of personal property.

Plaintiff has explained that she is the sole primary titleholder and registered owner of Ricky Martin. (Oshiro Decl., ¶ 4.) Plaintiff’s title evidence is documented by the Pet Lease Addendum and microchip deed. (Oshiro Decl., ¶ 4.)

Defendants present evidence indicating that they have provided food, water, supervision, transportation, veterinary assistance, and other daily care for Ricky Martin. (See, e.g., Foster Decl., ¶¶ 4-7.) Because of this, Defendants argue he was a shared companion animal, not Plaintiff’s animal. Defendants have also raised concerns around Plaintiff’s care of Ricky Martin. (See, e.g., Foster Decl., ¶ 13.)

No party cited any case law or statute which established a legal definition of a “pet owner.” The Court has conducted a review of California case law and has not identified any past cases addressing ownership in the context of roommates. As the Court stated in its order on a preliminary

injunction, in *Ballas v. Ballas* (1960) 178 Cal.App.2d 578, a divorce proceeding, the Court of Appeal assigned a dog to a wife on the grounds that (1) she acquired the dog with her own personal funds; (2) the dog was registered in her name at acquisition and remains so registered; and (3) she had possession for more than a year after separation.

While *Ballas* occurred after a divorce and did not involve roommates, *Ballas* placed an emphasis on official registration documents in deciding ownership. This necessarily results in the Court awarding ownership to Plaintiff, because the microchip deed and the pet lease addendum show Plaintiff was the sole owner of Ricky Martin.

The Court also reviewed persuasive authority outside the state of California. For example, in *Bartlett v. Demich* (PA Super. Ct. 2023) 307 A.3d 736, a Pennsylvania appellate court upheld an award of a cat to the rescue organization based on microchip certification and veterinary records listing the organization as owner, notwithstanding that the foster parent had cared for the cat for over four years. In *Komes v. Grote* (Mo. Ct. App. 2026) 729 S.W.3d 754, a Missouri appellate court affirmed awarding a dog to the party who had purchased it before the marriage and whose name alone appeared on the ownership papers. (Id. at p. 759 n. 2.)

In short, the evidence establishes that Plaintiff will very likely prevail on the underlying claim.

C.

Wrongful Detention

Pursuant to Code of Civil Procedure section 512.010, subd. (b)(2), the application must include “a showing that the property is wrongfully detained by the defendant, of the manner in which the defendant came into possession of the property, and, according to the best knowledge, information, and belief of the plaintiff, of the reason for the detention.”

Plaintiff has made this showing. Plaintiff has explained that Defendants removed Ricky Martin from the home while Plaintiff was packing, Plaintiff requested the return of Ricky Martin, and Defendants failed to return the cat.

(Oshiro Decl., ¶¶

6-7.)

D.

Description and Value of Property

Pursuant to Code of Civil Procedure section 512.010, subd. (b)(3), the application must include a particular description of the property and a statement of its value. Plaintiff has provided a particular description of the property. (Oshiro Decl., ¶ 3.)

Plaintiff therefore satisfies section 512.010, subd. (b)(3).

E.

Statutory Statement

Pursuant to Code of Civil Procedure section 512.010, subd. (b)(5), Plaintiff must provide a statement that the property has not been taken for a tax, assessment, or fine, pursuant to statute and has not been seized under an execution against the Plaintiff's property. The application includes this statement. (Application, ¶ 8a; Oshiro Decl., ¶ 14.)

F.

Location of the Property

Pursuant to Code of Civil Procedure section 512.010, subd. (b)(4), Plaintiff must identify the probable location of Ricky Martin and establish probable cause to that effect. Based on a statement from Defendants, Plaintiff has identified the current location of Ricky Martin as 5631 Willowcrest Avenue, North Hollywood, California 91601. (Oshiro Decl., ¶ 12.)

G.

Undertaking.

Code of Civil Procedure section 515.010 requires an undertaking to be filed before the writ issues in the amount of "not less than twice the value of the defendant's interest in the property."

Section

515.010, subd. (a) states that the value of the defendant's interest "is determined by the market value of the property less the amount due and owing on any

conditional sales contract or security agreement and all liens and encumbrances on the property, and any other factors necessary to determine the defendant's interest in the property."

However, Section 515.010, subd. (b)

says that "[i]f the Court finds that the Defendant has no interest in the property, the court shall waive the requirement of the Plaintiff's undertaking. Instead,

Section 515.010, subd. (b) requires Defendant to post an undertaking in an amount equal to the maximum retail value.

The Court finds

that Defendants have not demonstrated any legal interest in Ricky Martin. While normally the Court would require Defendants to pay \$50 as an undertaking, the Court will instead issue a turnover order, as discussed in Section H.

H.

Turnover Order

Section 512.070

states: "If a writ of possession is issued, the court may also issue an order directing the defendant to transfer possession of the property to the plaintiff. Such order shall contain a notice to the defendant that failure to turn over possession of such property to plaintiff may subject the defendant to being held in contempt of court."

(emphasis added.) "Thus a 'turnover' order, issued pursuant to section 512.070, is not a separate remedy but rather an alternative means of enforcing a writ of possession." (Edwards v. Sup.Ct. (1991) 230 Cal.App.3d 173, 178.)

The Court will

issue a turnover property, directing Defendants to transfer possession of the property to Plaintiff.

I.

Oral Evidence

"A party seeking permission to introduce oral evidence, except for oral evidence in rebuttal to oral evidence presented by the other party, must file, no later than three court days before the hearing, a written statement stating the nature and extent of the evidence proposed to

be introduced and a reasonable time estimate for the hearing.” (Cal. Rules of Court, Rule 3.1306, subd. (b).)

Plaintiff has not complied with this rule and
has not requested oral evidence.

CONCLUSION

The Court GRANTS the writ of possession and the
turnover order.

IT IS SO ORDERED.

Dated: September
2, 2026

Joseph
Lipner

Superior
Court Judge